

Bpifrance

A public limited company with capital of €5,440,000,000

Registered office: 27-31, avenue du Général Leclerc 94710 Maisons-Alfort Cedex

Créteil Trade and companies register number: 320 252 489 RCS

AMENDMENT TO THE 2022 UNIVERSAL REGISTRATION DOCUMENT



This amendment to the Universal Registration Document was filed on 28 April 2023 with the AMF as the competent authority under Regulation (EU) 2017/1129, without prior approval in accordance with Article 9 of the said regulation.

The Universal Registration Document may be used for the purposes of an offer to the public of securities or admission of securities to trading on a regulated market if completed by a securities note and, if applicable, a summary and any amendments to the Universal Registration Document. The whole is approved by the AMF in accordance with Regulation (EU) 2017/1129.

This amendment (hereinafter the "**Amendment**") updates and should be read with the 2022 Universal Registration Document filed with the AMF on 24 March 2023 under number D.23-0145 (hereinafter the "**2022 Universal Registration Document**").

A cross-reference table is included in the Amendment to help readers to easily locate updated or amended information.

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1. UPDATES TO THE 2022 UNIVERSAL REGISTRATION DOCUMENT

1.1. Non-financial performance statement

The following table, page 72 of Chapter 3 entitled "Board of Director's Management Report to the General Meeting" of the 2022 Universal Registration Document section 3.1.8 entitled "Non-financial Performance Statement" has been updated as follows (the section on numbers of employees trained in anti-corruption is unchanged):

	Employees trained in AML/CFT		Employees trained in anti-corruption	
	Number of employees trained in anti-money laundering (AML) and combating the financing of terrorism (CFT)/Total number of employees who attended one or more courses during the year (permanent, fixed-term, work-study and vocational training contracts)		Number of employees trained in anti-corruption/Total number of employees who attended one or more courses during the year (permanent, fixed-term, work-study and vocational training contracts)	
	2022	2021	2022	2021
Bpifrance	365	476	437	508
Bpifrance Investissement	116	88	116	88
Bpifrance Assurance Export	22	42	21	47
Brokerage	within Bpifrance			
Total	503	606	574	643
Total number of employees who attended one or more courses during the year	4012	3661	4012	3661
	13%	17%	14%	18%

1.2. Board of Director's Management Report to the General Meeting

At the meeting of 21 April 2023, the Board of Directors (i) determined the dividend remaining to be distributed for the financial year ending 31 December 2022 and (ii) authorised, on a preliminary basis, the modification to article 2.3 of the company's object in the articles of association.

Consequently, sections 3.1.9.5 entitled "Proposal for the Allocation of Earnings from the Financial Year" and 3.1.9.8 entitled "Proposal to Amend Bpifrance's Articles of Association" in Chapter 3 entitled "Board of Director's Management Report to the General Meeting" of the 2022 Universal Registration Document were updated as follows:

1.2.1. Section 3.1.9.5 entitled "Proposal for the Allocation of Earnings from the Financial Year":

Bpifrance registered a profit of €554,769,737.82 for the last financial year. Allocation is proposed as follows:

	Euros
Earnings for the financial year to be distributed	554 769 737,82
Retained earnings	462 955 909,55
For an available amount of:	1 017 725 647,37
Allocation to legal reserve	27 738 486,89
Profit to be distributed	989 987 160,48
<i>Distribution of an advance payment on dividend (€0.18 per share entitled to dividend)</i>	<i>122 051 793,24</i>
<i>Distribution of remaining dividend (€0.60 per share entitled to dividend 1)</i>	<i>406 839 411,60</i>
For a dividend of (€0.78 per action)	528 891 204,84
Allocation to other reserves	-
Allocation to retained earnings	461 095 955,64
Total retained earnings after allocation	461 095 955,64

1 Assumption: 678,065,686 shares entitled to dividends on date of the general meeting

This proposal was established by the Bpifrance Board of Directors on 21 April 2023 based on an assumption of Bpifrance treasury shares of €1,934,314 on the date the remaining dividend is paid. If this figure has changed by the date the remaining dividend is paid, the amount unpaid or amount to be paid due to a variation in the number of treasury shares will be debited or credited to the retained earnings account.

1.2.2. Section 3.1.9.8 entitled "Proposal to Amend Bpifrance's Articles of Association"

Section 3.1.9.8 of the 2022 Universal Registration Document proposing to amend Bpifrance's articles of association is updated to include the proposed Articles of Association which will be submitted on 16 May to the ordinary and extraordinary General Meeting of Bpifrance shareholders (as presented in section 3.1.9.8 of the 2022 Universal Registration Document and in (a) below) additional update regarding the Bpifrance's object (cf. (b) below).

a) Proposal to update the preamble of the Articles of Association

Law No. 2021-1774 of 24 December 2021 (known as the Rixain law) aiming to accelerate economic and professional equality has conferred an additional mission on Bpifrance: to provide support to companies committed to gender equality in the workplace. This task has been incorporated into Article 1A of Ordinance No. 2005-722 of 29 June 2005 for the Banque Publique d'Investissement.

It is proposed to include this additional mission in the preamble of Bpifrance's Articles of Association to ensure they are perfectly consistent with the missions referred to in Article 1A of the aforementioned ordinance.

As a result of the Rixain law, the title of Bpifrance's mission towards "female entrepreneurship" has been updated to "entrepreneurship by women" (from *entreprenariat féminin* to *entreprenariat des femmes*). It is proposed to reflect this change in the preamble of Bpifrance's Articles of Association.

- b) Proposal to amend Article 2.3 of the Articles of Association relating to Bpifrance's company object.

It is proposed to amend Article 2.3 of the Articles of Association to clarify that Bpifrance also aims to guarantee directly to corporate customers the counterparty risk of long-term contracts for electricity supplies using renewable energies (see the draft of the fourteenth resolution on pages 8 and 9 of the Amendment).

This proposed amendment follows the government's announcement on 10 November 2022 entrusting Bpifrance with the implementation of a guarantee fund to encourage long-term contracts for electricity supplies using renewable energies for the industrial sector.

1.3. Resolutions submitted to the Ordinary and Extraordinary General Meeting of 16 May 2023

At the meeting of 21 April 2023, the Board of Directors updated the draft of the fourth resolution (Allocation of earnings from the year ended 31 December 2022) which will be submitted on 16 May to the Ordinary and Extraordinary General Bpifrance shareholders meeting to specify the amount of dividend to be paid for the last financial year. It also approved the draft text of a fourteenth resolution for updating Bpifrance's company object (see (b) of Section 1.2 above).

Accordingly, Chapter 5 of the 2022 Universal Registration Document entitled "Resolutions submitted to the Ordinary and Extraordinary General Meeting of 16 May 2023" is updated as follows:

Ordinary:

- **First resolution** (approval of the Board of Directors report on the situation and activity of the company for the year ended 31 December 2022)

The General Meeting, acting under the conditions of quorum and majority required for Ordinary General Meetings, approved the Board of Directors report for the financial year ended 31 December 2022 (including the report on corporate governance) and all the transactions mentioned.

- **Second resolution** (approval of the financial statements for the year ended 31 December 2022)

The General Meeting, acting under the conditions of quorum and majority required for Ordinary General Meetings, after having reviewed the Board of Directors report for the financial year ended 31 December 2022 and the report of the Statutory Auditors on the company accounts, approved the financial statements for the period ending 31 December 2022, namely the balance sheet, the income statement and the appendix as presented and which result in a profit of €554,769,737.82, as well as the transactions reflected in these accounts.

- **Third resolution** (approval of the consolidated financial statements for the year ended 31 December 2022)

The General Meeting, acting under the conditions of quorum and majority required for the Ordinary General Meetings, after having reviewed the Board of Directors report for the year ended 31 December 2022 and the report of the Statutory Auditors on the consolidated accounts, approved the consolidated accounts for the period ending 31 December 2022, namely the balance sheet, the income statement and the annex as presented and which result in a profit (group net income share) of €1.5 billion, as well as the transactions reflected in these accounts.

The General Meeting noted that expenses that are not tax deductible (Article 39-4 of the General Tax Code) incurred by the company during the financial year ended 31 December 2022 amounted to €1,104,136.04 for the fraction of non-deductible rents for rented vehicles. The corresponding tax burden is €285,143.

The General Assembly discharged the directors and members of the Board of Directors for the execution of their mandates for the past financial year.

- **Fourth resolution** (distribution of earnings for the year ended 31 December 2022)

The General Meeting, with quorum and majority required for Ordinary General Meetings, approved the proposal presented by the Board of Directors and decided to distribute the profit from the last financial year as follows:

	Euros
Earnings for the financial year to be distributed	554 769 737,82
Retained earnings	462 955 909,55
For an available amount of:	1 017 725 647,37
Allocation to legal reserve	27 738 486,89
Profit to be distributed	989 987 160,48
<i>Distribution of an advance payment on dividend (€0.18 per share entitled to dividend)</i>	<i>122 051 793,24</i>
<i>Distribution of remaining dividend (€0.60 per share entitled to dividend 1)</i>	<i>406 839 411,60</i>
For a dividend of (€0.78 per action)	528 891 204,84
Allocation to other reserves	-
Allocation to retained earnings	461 095 955,64
Total retained earnings after allocation	461 095 955,64

1 Assumption: 678,065,686 shares entitled to dividends on date of the general meeting

The General Meeting noted that on 16 December 2022 the Board of Directors decided to make an advance payment of a global dividend of €122,051,823.48 (i.e. advance unit payments of €0.18), paid to EPIC Bpifrance and Caisse de Dépôts on 21 December 2022 and to other shareholders on 19 December 2022 and approved the distribution of this advance payment.

The General Meeting decided to distribute the remaining dividends for a total of €406,839,411.60 (€0.60 per share).

The General Meeting decided that, if this figure has changed by the date the remaining dividend is paid, the company holds Bpifrance treasury shares of €1,934,314, the amount unpaid or to be paid due to a variation in the number of treasury shares will be either debited or credited to the retained earnings account.

The General Meeting acknowledged the Board of Director's summary of distributed dividends for the last three financial years:

Financial year	Dividend per share
2019	No distribution
2020	No distribution
2021	€1.28 per share

- **Fifth resolution** (approval of the special auditors report on agreements referred to in Article L.225-38 *et seq* and in compliance with the French Commercial Code)

The General Meeting, with quorum and majority required for Ordinary General Meetings, and having reviewed the special statutory auditors' report on agreements referred to in Article L.225-38 *et seq* and in compliance with the French Commercial Code, approved the said report.

- **Sixth resolution** (approval of head office costs agreement between Bpifrance and Caisse des Dépôts)

The General Meeting, with quorum and majority required for Ordinary General Meetings and having reviewed the special statutory auditors' report on agreements referred to in Article L.225-38 *et seq* and in compliance with the French Commercial Code, approved the agreement between Bpifrance and Caisse des Dépôts regarding shared head office expenses authorised and signed by the Board of Directors on 11 May 2022.

- **Seventh resolution** (approval of the NOVIM share transfer contract between Bpifrance and Caisse des Dépôts)

The General Meeting, with quorum and majority required for Ordinary General Meetings, and having reviewed the special statutory auditors' report on agreements referred to in Article L.225-38 *et seq* and in compliance with the French Commercial Code, approved the NOVIM share transfer contract between Bpifrance and Caisse des Dépôts authorised by the Board of Directors on 30 September 2022 and signed on 12 December 2022.

- **Eighth resolution** (ratification of the cooptation of Nathalie Tubiana)

The General Meeting, with quorum and majority required for Ordinary General Meetings, and after having reviewed the Board of Director's report, decided to ratify the cooptation of Nathalie Tubiana as director to replace Virginie Chapron-du-Jeu for the remainder of her term of office i.e. until the 2023 ordinary general meeting to approve the accounts of the financial year ending 31 December 2022.

- **Ninth resolution** (renewal of Carole Abbey's mandate as director)

The General Assembly, with quorum and majority required for Ordinary General Meetings, and after having reviewed the Board of Director's report, decided to renew Carole Abbey's term of office as director for five years which will come to term at the end of the Ordinary General Meeting held in 2028 to approve the accounts for the financial year ending 31 December 2027.

- **Tenth resolution** (renewal of Nathalie Tubiana's term of office as director)

The General Assembly, with quorum and majority required for Ordinary General Meetings, and after having reviewed the Board of Director's report, decided to renew Nathalie Tubiana's term of office as director for five years which will coming to term at the end of the Ordinary General Meeting held in 2028 to approve the accounts for the financial year ending 31 December 2027.

- **Eleventh resolution** (approval of total gross amount of €9,383,801.76 for all types of remuneration paid during the financial year ended 31 December 2022 to people referred to in article L.511-71 of the French Monetary and Financial Code)

The General Meeting, acting with quorum and majority required for Ordinary General Meetings, consulted in compliance with article L.511-73 of the French Monetary and Financial Code, after having reviewed the Board of Director's report, approved the total gross amount of €9,383,801.76 for remuneration of all types paid during the financial year ended 31 December 2022 to people referred to in article L.511-71 of the French Monetary and Financial Code i.e. 62.38 FTEs.

- **Twelfth resolution** (power for formalities)

The General Meeting, acting with quorum and majority required for Ordinary General Meetings, granted full power to the bearers of originals, extracts or copies of the minutes of this General Meeting to fulfil all legal formalities for registration or publication.

Extraordinary:

- **Thirteenth resolution** (update to the preamble of the Articles of Association)

The General Meeting, acting with quorum and majority required for Extraordinary General Meetings, and after having reviewed the Board of Director's report, decided to update the preamble of the Articles of Association with immediate effect:

i) to include a reference, just before the company's object, to a new mission provided for in Law no. 2021-1774 dated 24 December 2021 (known as the Rixain Law) for accelerating economic and professional equality: "The aim is to provide support to companies committed to gender equality in the workplace," and

ii) to update the title of Bpifrance's mission regarding female entrepreneurship which will be "entrepreneurship by women" in the future to reflect the modification by the Rixain Law.

- **Fourteenth resolution** (update article 2.3 of the Articles of Association)

The General Meeting, acting with quorum and majority required for Extraordinary General Meetings, and after having reviewed the Board of Director's report, decided to change Article 2.3 of the Articles of Association with immediate effect:

Previous version:

"**2.3** As part of the activity defined in (2) of Article 2.1 above, the Company, a public sector investment bank, facilitates access to financing for small and medium-sized businesses and individuals by sharing the risk of financial assistance granted by other intermediaries. This includes financial assistance transferred to bodies providing securitisation, group funding, and credit institutions, particularly by guaranteeing repayment of loans granted by said intermediaries or shares or securities linked to these loans. To that end, the Company relies mainly on general reserves constituted by its shareholders or guarantee funds provided, in part or in whole, by public endowments with exclusive counterparties limited to missions of economic public interest entrusted by public authorities to the Company.

The Company may grant guarantees not backed by a general reserve fund or guaranteed fund. It may also establish and manage guarantee funds financed by other bodies. "

New version (see italics, bold or strikethrough text for changes)

"**2.3** As part of the activity defined in ~~(2) of Article 2.1~~ above, the object of the Company, a public sector investment bank, is **(i) to facilitate access to financing, with priority on small and medium-sized businesses and individuals by sharing the risk of financial assistance granted by other intermediaries. This includes financial assistance transferred to bodies providing securitisation, group funding, and credit institutions, particularly by guaranteeing repayment of loans granted by said intermediaries or shares or securities linked to these loans; and (ii) to guarantee business clients counterparty risk for long-term electricity supplies using renewable energies.**

To that end, the Company relies mainly on general reserves constituted by its shareholders or guarantee funds provided, in part or in whole, by public endowments with exclusive counterparties limited to missions of economic public interest entrusted by public authorities to the Company.

The Company may grant guarantees not backed by a general reserve fund or guaranteed fund. It may also establish and manage guarantee funds financed by other bodies. "

1.4. Corporate governance report

Pages 197 and 198 of chapter 4 entitled "Corporate Governance Report" of the 2022 Universal Registration Document, section 4.1.4 entitled "Information on the directors whose i) terms of office ended during the past financial year or ii) who were appointed in 2023" were updated as follows:

4.1.4 Information on the directors whose i) terms of office ended during the past financial year or ii) who were appointed in 2023

4.1.4.1 Term expired on 25 January 2022

Annabel André, Director representing the regions

Regional Councillor, Auvergne-Rhône-Alpes

Date of birth: 8 October 1970

Business address: Conseil Régional Auvergne Rhône Alpes, 1 esplanade François-Mitterrand, CS 20033, 69269 Lyon Cedex 02

First appointment: 18 December 2020

4.1.4.2 Term ended 1 June 2022

Martin Vial, Director representing the government

Commissioner for State Investments, Agence des Participations de l'Etat (APE)

Date of birth: 8 February 1954

Business address: Agence des Participations de l'Etat, 139 rue de Bercy, 75572 Paris Cedex 12

First appointment: 18 December 2020

4.1.4.3 Term ended on 27 September 2022

Charles Sarrazin, Director representing the government

Services and Finance Investments Director, Agence des Participations de l'Etat (APE)

Date of birth: 2 January 1974

Business address: Agence des Participations de l'Etat, 139 rue de Bercy, 75572 Paris Cedex 12

First appointment: 22 June 2022

4.1.4.4 Cooptation from 1 February 2023

Nathalie Tubiana, Director representing Caisse des Dépôts

Director of Finance, Caisse des Dépôts Group

Date of birth: 24 October 1967

Business address: Caisse des Dépôts, 56, rue de Lille, 75356 Paris 07 SP

First appointment: 1 February 2023

Term of current office: Ordinary General Meeting to be held to approve accounts for the financial year ending 31 December 2022.

Other current mandates:

President, CDC Développement Solidaire

Director, La Poste (since February 2023)

Mandates expired during the last five years:

Director, Agence Française de Développement, representative of the CDC (2018-2020)

Director, CDC Habitat (2018-2020)

Director, SCET (2018-2020)

Director, FTSI (2017-2020)

Nathalie Tubiana graduated from the Ecole Supérieure de Gestion Paris (Paris School of Business). She has an MBA from HEC and certification from the Institut Français des Administrateurs at Sciences Po Paris (Paris Institute of Political Studies). She held various positions in financial departments in the metallurgy industry for precious metals from 1991 to 1997.

Nathalie Tubiana joined the Caisse des Dépôts Group in 1998 at CNP Assurances where she was in charge of partnership audits, then insurance customer services in Arcueil and Angers. In 2005, she was appointed Head of Performance and Strategic Planning of the CNP Assurances Group.

Nathalie Tubiana joined the General Secretariat of the public institution in 2009, where she created the Social and Environmental Responsibility programme.

She joined the management of the Fonds d'Epargne in 2010 as General Secretary, then became Deputy General Secretary of the Caisse des Dépôts Group. In 2015, she was appointed Director of Budget and Economic and Property Performance for the Group's General Secretariat. In 2018, she became Director of Finance of the Banque des Territoires (Caisse des Dépôts) and a member of its executive committee.

In 2020, she was appointed Chief Risk Officer for the Caisse des Dépôts Group and member of the executive committee. Nathalie Tubiana has been Director of Finance and Sustainable Policy at Caisse des Dépôts since 1 February 2023.

4.1.4.5 Appointment by decree on 1 February 2023

Pierre-André de Chalendar, director and qualified individual selected for his financial, economics, and sustainable development expertise

Chairman of the Board of Directors, Saint-Gobain

Date of birth: 12 April 1958

Business address: Compagnie de Saint-Gobain, Tour Saint-Gobain, 12 place de l'Iris, 92096 La Défense Cedex

First appointment: 1 February 2023

Term of current office: 31 January 2028

Other current mandates:

Director, BNP Paribas

Director, Veolia Environnement

Chairman of the supervisory board, ESSEC

Director, Saint-Gobain Corporation,

Member, Association Française des Entreprises Privées

Co-President, La Fabrique de l'Industrie

Chairman, Institut de l'Entreprise (since January 2023)

Mandates expired during the last five years:

CEO, Saint-Gobain (2010-2021)

Director, GIE SGPM Recherches (2007-2021)

ESSEC graduate and past student of the Ecole Nationale d'Administration (French National School of Administration), Pierre-André de Chalendar was formerly an Inspector of Public Finances and Deputy CEO for Energy and Raw Materials at the Ministry of Industry.

He joined the Compagnie de Saint-Gobain company as Planning Director in 1989. He then held the positions of Vice-President of Abrasives Europe between 1992 and 1996, President of the Abrasives division from 1996 to 2000, and Delegate General for the United Kingdom and the Republic of Ireland from 2000 to 2002. He was appointed as Deputy CEO of the Compagnie de Saint-Gobain in charge of the Building Distribution Division in 2003.

Appointed Delegate CEO of Compagnie de Saint-Gobain in May 2005, then elected Director in June 2006, he was appointed CEO of Compagnie de Saint-Gobain in June 2007 and then Chairman and CEO in June 2010, a position he held until June 2021.

Pierre-André de Chalendar has been Chairman of the Board of Directors of Compagnie de Saint-Gobain since July 2021.

He is also Director for BNP Paribas, Veolia and Bpifrance.

He has been Co-chair of La Fabrique de l'industrie since July 2017 and Chairman of the ESSEC Supervisory Board since February 2019. He has been Chairman of the Institut de l'Entreprise since 1 January 2023.

2. DOCUMENT AVAILABLE TO THE GENERAL PUBLIC

This Amendment is available on the Bpifrance website ([Investor Relations | Bpifrance](#)) and the AMF website (<https://www.amf-france.org/fr>).

3. PEOPLE RESPONSIBLE FOR THE AMENDMENT TO THE UNIVERSAL REGISTRATION DOCUMENT

3.1. People responsible

Nicolas Dufourcq, CEO of Bpifrance and Arnaud Caudoux, Deputy CEO of Bpifrance, are responsible for the information contained in this Amendment.

3.2. Statement by the CEO and Deputy CEO

We hereby certify that the information contained in this Amendment is, to the best of our knowledge, a true representation of the facts and contains no omission likely to affect its meaning.

28 April 2023

Nicolas Dufourcq
CEO

Arnaud Caudoux
Deputy CEO

4. CROSS-REFERENCE TABLE

This Amendment must be read and interpreted with the 2022 Universal Registration Document filed with the AMF on 24 March 2023 under number D.23-0145 which includes the annual financial report, available by clicking: [here](#).

This cross-reference table features the headings provided for in Annexes I and II of the European Commission Delegated Regulation (EU) 2019/980 of 14 March 2019. It refers to the page numbers or titles of the 2022 Universal Registration Document and this Amendment where information relating to each of these headings can be found.

Unless indicated otherwise, notes referred to in this cross-reference table are notes in the annex to the consolidated accounts.

Annex I of European Commission Delegated Regulation (EU) 2019/980			2022 Amendment to the Universal Registration Document filed with the AMF on 28 April 2023	2022 Universal Registration Document filed with the AMF on 24 March 2023
			Section(s) or page(s)	Section(s) or page(s)
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